

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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KHALID WISDOM,

PLAINTIFF,

-against-

**AMENDED COMPLAINT
AND JURY DEMAND**

THE CITY OF NEW YORK, POLICE OFFICER TEDDY
DUROC, SHIELD # 10360, POLICE OFFICER PAUL
DAWKINS, SHIELD # 6674, POLICE OFFICER BRIAN
RAMIREZ, SHIELD # 22014,

17-CV-02443 (PKC) (RER)

DEFENDANTS.

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Plaintiff, by his attorney, Stoll, Glickman & Bellina, LLP, alleges:

PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiff seeks relief through 42 U.S.C. §1983 for the violation of his Fourth, Fifth, Sixth, and Fourteenth Amendment rights.

2. The claim arises from an incident commencing May 8, 2016, and terminating April 3, 2017, in which Officers of the New York City Police Department (“NYPD”), acting under color of law, intentionally and willfully subjected Plaintiff to, among other things, false arrest and malicious prosecution.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys’ fees, and such other and further relief as the Court deems just and proper.

JURISDICTION

4. This action arises under the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and under 42 U.S.C. §§ 1983 and 1988 and the laws and Constitution

of the State of New York.

5. The jurisdiction of this court is predicated upon 28 U.S.C. §§ 1331, 1343(a)(3) and (4), 1367(a).

VENUE

6. Venue is laid within the Eastern District of New York because Defendant City of New York is located, and a substantial part of the events giving rise to the claim occurred, within the boundaries of the Eastern District.

PARTIES

7. Plaintiff is a resident of Kings County in New York State.

8. The City of New York (“the City”) is a municipal corporation organized under the laws of the State of New York. At all times here relevant, the City, acting through the New York Police Department (“NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, the City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

9. Defendant Police Officers Teddy Duroc, Shield # 10360, Paul Dawkins, Shield # 6674, and Brian Ramirez, Shield # 22014 (collectively, “the officers”) were at all times here relevant police officers of the NYPD, and as such were acting in the capacity of an agents, servants and employees of the City of New York. At all times here relevant, the officers were involved in the decision to arrest Plaintiff without probable cause and to fabricate statements causing his prosecution. The officers are sued in their individual capacities.

10. At all times here mentioned, the officers were acting under color of the statutes,

ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL ALLEGATIONS

11. On May 8, 2016, at approximately 3:15 am, Plaintiff was lawfully in front of 1935 Bergen Street in Brooklyn, NY. He possessed no contraband or gun, and was committing no offense.

12. Nevertheless, the officers, who were not in uniform, approached Plaintiff and began to search him.

13. When Plaintiff protested the unlawful search and seizure, the officers slammed him to the ground and arrested him.

14. One of the officers appeared to be searching the area.

15. When Plaintiff was brought to the precinct by the officers, he learned he was being charged with possession of a gun.

16. The officers made false statements to each other, to the district attorney's office, and at trial, claiming that they observed a gun in Plaintiff's pocket, and removed it from his pocket.

17. An eyewitness to the arrest, unaffiliated with Plaintiff, a medical doctor who was doing her residency in pediatrics at Columbia New York Presbyterian Hospital, testified that she observed almost all of the arrest and incident, and that she never saw a gun retrieved. Her testimony differed from the officers' statements in several other significant ways.

18. Plaintiff was acquitted after a jury trial.

19. At all times during the events described above, the defendant officers were engaged in a joint venture and formed an agreement to violate Plaintiff's rights. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events. They failed to

intervene in the obviously illegal actions of their fellow officers against Plaintiff.

20. During all of the events above described, defendants acted maliciously and with intent to injure Plaintiff.

DAMAGES

21. As a direct and proximate result of the acts of defendants, Plaintiff suffered the following injuries and damages:

- a. Violation of his rights pursuant to the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution;
- b. Loss of liberty;
- c. Emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety;
- d. Physical pain and suffering.

FIRST CAUSE OF ACTION

(42 U.S.C. § 1983 – FALSE ARREST)

22. The above paragraphs are here incorporated by reference.

23. Defendants acted under color of law and deprived Plaintiff of his civil, constitutional and statutory rights to be free from unreasonable search and seizure, and are liable to Plaintiff under 42 U.S.C. §1983.

24. Defendants arrested Plaintiff unlawfully when they seized him without legal privilege to do so. Plaintiff did not consent to his confinement and was conscious of it.

25. Plaintiff was damaged as a result of defendants' wrongful acts.

SECOND CAUSE OF ACTION
(42 U.S.C. § 1983 – MALICIOUS PROSECUTION)

26. The above paragraphs are here incorporated by reference.

27. Defendants, acting with malice, initiated a prosecution against Plaintiff and caused him to be prosecuted.

28. Defendants have deprived Plaintiff of their civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiff under 42 USC § 1983, New York State common law, and the New York State Constitution.

29. As a result of the malicious prosecution implemented by defendants, Plaintiff was damaged.

THIRD CAUSE OF ACTION
(42 U.S.C. § 1983 – DENIAL OF RIGHT TO A FAIR TRIAL)

30. The above paragraphs are here incorporated by reference.

31. The individual defendants fabricated false evidence against Plaintiff and forwarded such false evidence to the Kings County District Attorney's Office, and failed to intervene in each other's obviously illegal actions.

32. Defendants were aware or should have been aware of the falsity of the information used to prosecute Plaintiff.

33. As a result of Defendant's false evidence, bail was set, Plaintiff was sent to Rikers Island, and Plaintiff fought false charges for almost a year, until a jury acquitted him in April 2017.

34. Defendants' conduct deprived Plaintiff of his right to a fair trial, pursuant to the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Defendants are liable to Plaintiff under 42 U.S.C. § 1983.

35. Plaintiff has been damaged as a result of Defendants' wrongful acts.

FOURTH CAUSE OF ACTION
(MUNICIPAL AND SUPERVISORY LIABILITY)

36. The above paragraphs are here incorporated by reference.

37. The City is liable for the damages suffered by Plaintiff as a result of the conduct of its employees, agents, and servants, in that, after learning of defendants' violation of Plaintiff's constitutional rights, it failed to remedy the wrong; it has created a policy or custom under which unconstitutional practices occurred and allowed such policies or customs to continue, and it has been grossly negligent in managing subordinates who caused the unlawful condition or event. The City has been alerted to the regular use of excessive force and false arrests by its police officers, but has nevertheless exhibited deliberate indifference to such excessive force and false arrests; that deliberate indifference caused the violation of Plaintiff's constitutional rights in this case.

38. The City knew, through prior uses of force and prior lawsuits alleging excessive force and false arrests, that the officers were likely to cause harm to the constitutional rights of people in Plaintiff's position.

39. The City's continuing, knowing failure to deter police misconduct has led to ever increasing numbers of lawsuits for repeat routine misconduct by the same officers, same units and same precincts.

40. The number of claims against the NYPD doubled between 2004 and 2014, to a record high of 9,570 lawsuits filed in 2012. The suits cost taxpayers more than \$1 billion dollars during that time period.¹

¹ Barry Paddock, Rocco Parascandola, John Marzulli, & Dareh Gregorian, *Exclusive: Detective is NYPD's most-sued cop, with 28 lawsuits filed against him since 2006*, N.Y. DAILY NEWS, Feb. 16, 2014, <http://www.nydailynews.com/new-york/lawsuits-nypd-double-decade-costing-taxpayers-1b-article->

41. From 2009-2014, New York City paid out more nearly \$500 million to settle NYPD-related cases.² In fiscal year 2012, so-called “police action claims,” which are claims that result from false arrest or imprisonment, police shootings, excessive use of force, assault, or failure to protect, cost the City \$64.4 million.³ In fiscal year 2011, the City paid \$60.2 million in police action claims.⁴

42. The widely held assumption is that civil rights lawsuits deter police misconduct. “The purpose of § 1983 is to deter state actors from using the badge of their authority to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence fails.” *Wyatt v. Cole*, 504 U.S. 158, 161, (1992) citing *Carey v. Piphus*, 435 U.S. 247, 254-257, (1978). “As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it is in other contexts.” See *Hudson v. Michigan*, 547 U.S. 586, 598 (2006) citing *Correctional Services Corp. v. Malesko*, 534 U.S. 61, 70 (2001) and *Nix v. Williams*, 467 U.S. 431, 446, (1984). “It is almost axiomatic that the threat of damages has a deterrent effect (citation omitted) surely particularly so when the individual official faces personal financial liability.” *Carlson v. Green*, 446 U.S. 14, 21, (1980), citing *Imbler v. Pachtman*, 424 U.S. 409, 442, and footnote 6 (1976).

43. However, the City of New York has isolated NYPD officers from accountability for its civil rights lawsuits by indemnifying without deliberation officers who violate the constitutional

[1.1615919#ixzz2tttdX4ZkE](#); see also Colleen Long & Jennifer Peltz, Associated Press, *Nearly \$1B in NYC police payouts*, Yahoo! News (October 14, 2010, 7:44 PM), <http://news.yahoo.com/ap-investigation-nearly-1b-nyc-police-payouts.html> (reporting that, in the decade ending in 2010, the City paid out nearly one billion dollars to resolve claims against the NYPD).

² Caroline Bankoff, *The City Has Paid Almost Half a Billion Dollars in NYPD-Related Settlements Over the Past 5 Years*, NYMag.com, Oct. 12, 2014, <http://nymag.com/daily/intelligencer/2014/10/428-million-in-nypd-related-settlements-paid.html>.

³ City of New York, Office of the Comptroller Claims Report FY 2012, 30, June 4, 2013, <https://www.documentcloud.org/documents/1375759-fy-2012-claims-report.html>.

⁴ *Id.*

rights of citizens, and, as a result, is preventing civil rights lawsuits from having any deterrent value to the City, the NYPD or its officers. Civil rights lawsuits against police officers have no impact on the officers' careers, regardless of the expense to the City of the officers' lawsuit liability, even after multiple lawsuits.

44. In 1999, former Comptroller Alan Hevesi reported that there was a "a total disconnect" between the settlements of even substantial civil claims and police department action against officers. This "total disconnect" between officers' liability and NYPD discipline, results in a system where the City pays vast sums to settle false arrests, but the NYPD does nothing to investigate nor address the underlying causes of such false arrests or officers who have incurred large sums of civil rights liability. The City Council, Government Operations Committee, despite being alerted at a City Council hearing on December 12, 2009, and on other occasions, to the obvious problem of officers and precincts with a disproportionate responsibility for civil rights lawsuit liability, has failed to take action to hold individual officers or precincts accountable. It has likewise failed to hold an investigative hearing into what extent specific officers, units and precincts are disproportionately responsible for New York City civil rights lawsuits.

45. The event underlying Plaintiff's factual allegations was not an isolated incident. The City has been aware for some time, from lawsuits, notices of claim, complaints filed with the Civilian Complaint Review Board, and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of their police officers unlawfully search and seize citizens, bring charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of their fellow officers. Nevertheless, the City has allowed policies and practices that allow the aforementioned to persist.

46. The City has been alerted to the regular use of false arrests by its police officers, through lawsuits, civilian complaints, notices of claim, City Council hearings, newspaper reports, and cases resulting in declined prosecutions and dismissals, but has nevertheless exhibited deliberate indifference to such false arrests; that deliberate indifference caused the violation of plaintiff's constitutional rights in this case.

47. Nevertheless, the City has repeatedly resisted attempts to catalog even basic information gleaned from civil rights lawsuits that could improve training, leadership, supervision, and discipline in the NYPD. The City's deliberate indifference towards the contents of civil rights litigation, towards individual officers repeatedly named in lawsuits, towards incidents repeatedly occurring in the same precinct, and towards patterns of misconduct that arise in civil rights litigation has caused the constitutional violations against plaintiff.

48. Additionally, according to a report of the New York City Bar Association issued in 2000, the City has isolated its law department from the discipline of police officers. Civil rights lawsuits against police officers have no impact on the officers' careers, regardless of the officers' responsibility for the lawsuit liability, even after multiple lawsuits.

49. The Civilian Complaint Review Board ("the CCRB"), a City police oversight agency, often finds complainants lack credibility based in part on the fact that such complainants have also brought lawsuits to remedy the wrongs they have experienced, a practice that often results in not substantiating the most serious charges brought to the CCRB. In addition, the CCRB virtually never initiates their own findings of false statements against officers who have made false statements to the CCRB in their own defense, nor do they initiate findings that officers have failed to report their fellow officers' misconduct; thus, officers have no real incentive to come forward, or to testify truthfully at the CCRB.

50. The NYPD, once receiving a substantiated complaint by the CCRB, routinely fails to adequately discipline officers for misconduct. Even as focus on police misconduct has increased in recent years, and new leadership has promised sweeping operational changes, the NYPD still routinely fails to discipline its officers. According to a study conducted by the WNYC, in 2012, police officers received no discipline in 104 cases (40.3%) of the substantiated complaints processed (258).⁵ In 2013, the NYPD dropped 28.3% of the substantiated complaints without any disciplinary action.⁶ In 2014, it dropped 24.5%.⁷

51. Due to the continuing failures of the CCRB, many abuses of authority by police officers go unreported. Even when abuse is reported, police officers rarely, if ever, are disciplined. This pattern is well-known to NYPD officers; as a result, officers feel free to abuse their authority with little or no fear of repercussions. Such lack of accountability has permitted, and even encouraged, frequent and widespread violations of the civil rights of individuals at the hands of NYPD officers. Furthermore, the lack of accountability contributed to the defendant police officers' actions described above in that the officer defendants felt insulated from any repercussions for their actions regarding the Plaintiff.

52. The NYPD Department Advocate, which is endowed with the responsibility of following up on substantiated CCRB charges, is understaffed and under-utilized. Furthermore, in the extraordinarily rare event that the CCRB substantiates a complaint and the Department Advocate proves the case in an internal trial against an officer, the police commissioner still maintains the power to reduce the discipline against such an officer, which the police commissioner has done on many occasions. This entire procedure provides so many

⁵ WNYC, *Police Punishment: CCRB vs NYPD*, <http://project.wnyc.org/ccrb/> (last visited July 23, 2015).

⁶ *Id.*

⁷ *Id.*

opportunities for meritorious complaints of false arrests to be dismissed or disregarded that there is no credible, effective oversight of police department employees, despite a superficially elaborate set of oversight mechanisms.

53. Further, the City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct or to calculate the total liability of an individual officer or of a precinct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even occasional judicial findings that officers have testified incredibly are not reported routinely to the police department or any oversight agencies.

54. All of the aforementioned has created a climate where police officers and detectives lie to prosecutors and in police paperwork and charging instruments, and testify falsely, with no fear of reprisal. As the Honorable Jack Weinstein, United States District Court Judge of the Eastern District of New York, has written:

Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration—through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department—there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.

Colon v. City of New York, No. 09-CV-8, 2009 WL 4263362, at *2 (E.D.N.Y. Nov. 25, 2009).

55. The City is aware that all of the aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice, the City has failed to take corrective action. This

failure and these policies caused the officers in the present case to violate Plaintiff's civil rights, without fear of reprisal.

56. Plaintiff has been damaged as a result of the deliberate indifference of the Defendant City.

WHEREFORE, Plaintiff demands judgment against the defendants, jointly and severally, as follows:

- A. In favor of Plaintiff in an amount to be determined by a jury for each of Plaintiff's causes of action;
- B. Awarding Plaintiff punitive damages in an amount to be determined by a jury;
- C. Awarding Plaintiff reasonable attorneys' fees, costs and disbursements of this action; and
- D. Granting such other and further relief as this Court deems just and proper.

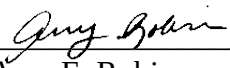
JURY DEMAND

Plaintiff demands a trial by jury.

Respectfully submitted,

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